

24-25.) Attorney Endy Ukoha-Ajike in his declaration states that he has attempted to arbitrate the matter but neither the Alameda nor the Contra Costa Bar Associations currently maintain a fee arbitration program, making the arbitration provision moot. (Ukoha-Ajike Decl. ¶ 6.)

Conclusion

John and Timothy Paulding retained Attorney Endy Ukoha-Ajike to stop Thelma Jackson's efforts to assert a 100% interest in real property and to evict them from the property. The attorney succeeded in establishing a 50% interest in the Trust of which the Pauldings were beneficiaries and ended eviction efforts. Later, Thelma Jackson filed the instant partition action, whereupon the Pauldings dismissed Attorney Endy Ukoha-Ajike and represented themselves. The property in dispute has now been partitioned by sale.

The 50% interest of the Pauldings that was awarded to them in the present action only exists due to the efforts of Attorney Endy Ukoha-Ajike. It would be inequitable not to enforce the signed lien agreement.

Based on the explanation provided above, **Attorney Endy Ukoha-Ajike's motion is granted. The Court orders David Martin appointed Receiver in this matter, to pay the sum of \$110,836.45 to Endy Ukoha-Ajike from the shares of the proceeds of sale of 5648 Burlingame Avenue, Richmond, CA 94804 due to John and Timothy Paulding.**

5. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
*HEARING ON MOTION IN RE: CONFIRM AND/OR IMPOSE LIEN ON SHARE OF JOHN AND TIMOTHY PAULDING IN PROCEEDS OF SALE
FILED BY: UKOHA-AJIKE, ENDY
TENTATIVE RULING:

See line 4.

6. 9:00 AM CASE NUMBER: C24-00664
CASE NAME: COUNG CHAU VS. RONALD FONG
*HEARING ON MOTION IN RE: LEAVE TO FILED 2ND AMENDED COMPLAINT
FILED BY: CHAU, COUNG VI
TENTATIVE RULING:

Granted, without opposition. Plaintiff is to separately file the proposed Second Amended Complaint attached as exhibit A to the Declaration of Mario A. Moya within ten days after notice of this ruling.

7. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Defendant John Muir Health's demurrer to the first amended complaint is **sustained with leave to amend**. Plaintiff has twenty days from notice of entry of the order to file a second amended

complaint and an amended declaration under Code of Civil Procedure section 377.32.

Plaintiff Deja Jones is bringing this case individually and as successor-in-interest to Melody Jones. Plaintiff is Melody's granddaughter. (FAC ¶23.) Plaintiff alleges that Melody went to John Muir for surgery on November 19, 2023. (FAC ¶22.) Plaintiff alleges that John Muir's treatment of Melody resulted in bed sores and caused a decline in Melody's health, including a period of unconsciousness. Plaintiff alleges that Melody was a resident of John Muir's facility in Concord from November 19, 2023, to December 25, 2023. (FAC ¶53.) Melody transferred to a Sutter Health facility on December 25, 2023, and passed away on January 17, 2024, from septic shock and a necrotic leg. (FAC ¶32.)

Plaintiff is suing for (1) negligence, (2) elder abuse, (3) wrongful death and (4) unfair business competition. John Muir demurs to all claims based upon a defect or misjoinder of parties and the failure to allege sufficient facts to state a cause of action. (Code of Civil Procedure §430.10(d), (e).) John Muir also demurs to the unfair business competition claim on uncertainty. (Code of Civil Procedure §430.10(f).)

As an initial matter, the Court notes that Defendant sent one letter and one email to Plaintiff about the FAC, but Plaintiff failed to respond. (French dec.) In order to fully comply with Code of Civil Procedure section 430.41, the parties are required to meet and confer in person, by telephone or by video conference. Defendant initiated the process, but plaintiff made it impossible to fully comply by failing to respond. Defendant should not be able to preclude the filing of a demurrer by failing to respond. Accordingly, the Court exercises its discretion to decide the demurrer and motion to strike now without requiring a compliant meet and confer. The parties are reminded, however, to do a statutorily compliant meet and confer if there is another demurrer.

Defendant argues that causes of action one, two and three are survival actions and as such, Plaintiff needs some basis for bringing claims on behalf of Melody. Defendant's moving papers argued that Plaintiff has not alleged that she was appointed as Melody's executor, administrator, or personal representative and she did not file a Code of Civil Procedure §377.32 declaration. A declaration under section 377.32 must state that the declarant is decedent's successor in interest or is authorized to act on behalf of the successor in interest and include facts supporting that statement. (Code of Civil Procedure §377.32(5).)

As to cause of action three for wrongful death, section 377.60 states who may bring a wrongful death action, including "decedent's surviving spouse, domestic partner, children, and issue of deceased children, or, if there is no surviving issue of the decedent, the persons, including the surviving spouse or domestic partner, who would be entitled to the property of the decedent by intestate succession." (Code of Civil Procedure § 377.60(a).) Defendant argues that Plaintiff has not alleged that she meets the requirements under section 377.60.

Further, Defendant argues that while all heirs designated in section 377.60 have their own claim, "the actions are deemed joint, single and indivisible and must be joined together in one suit." (*Corder v. Corder* (2007) 41 Cal.4th 644, 652.) While Plaintiff has sued DOES 51-60 as Melody's unknown heirs, Defendant argues that Plaintiff must know some of Melody's heirs, including the

name of her mother or father.

After this demurrer was filed, Plaintiff filed a 377.32 declaration. In this declaration, Plaintiff declares that she is Melody's granddaughter. She states that there is no pending proceeding for administration of decedent's estate. Plaintiff also states that she is one of Melody's successors in interest (Code of Civil Procedure § 377.11) and that no other person has a superior right to commence this proceeding. (Jones dec. ¶¶2-5.) Plaintiff attaches a copy of Melody's death certificate, which lists Melody's son Joshua Jones as the informant. (Jones dec. ex. 1.)

In reply, Defendant argues that the 377.32 declaration is insufficient. The attached death certificate shows that Melody had a son. Defendant argues that the declaration does not address whether Melody's son would have rights here and does not state if there are any other living relatives.

As to the section 377.32 declaration, Plaintiff has not included sufficient facts in her declaration to show that she is the successor in interest to Melody's estate. Plaintiff states that she is Melody's granddaughter, but has not addressed if Melody has any other living heirs, such as children or grandchildren, or has otherwise shown how Plaintiff is the successor in interest.

As to the wrongful death claim, Plaintiff is Melody's granddaughter. Plaintiff has not alleged that her parent, Melody's child, is deceased. Nor has Plaintiff alleged facts showing that Plaintiff would be entitled to the property of the decedent by intestate succession. Further, Plaintiff should allege whether there are any known heirs who might have a wrongful death action under section 377.60, such as Joshua Jones.

As to the remaining claims, the Court finds that Plaintiff's section 377.32 declaration is insufficient and the FAC does not allege sufficient facts to show that Plaintiff has standing to bring any of the claims here. The demurrer is sustained with leave to amend for Plaintiff to file an amended complaint and an amended section 377.32 declaration that addresses the standing issue.

8. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT**
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Defendant John Muir Health's motion to strike portions of the amended complaint is **granted**. Plaintiff is given leave to amend as to the allegations in paragraph 46 and 47.

Defendant asks to strike (1) allegations that "Plaintiff is entitled to treble damages under Civil Code § 3345 as a result of Defendants' unfair business practices" in cause of action four (FAC ¶83) and (2) allegations related to 22 CCR section 72311 in paragraph 46 and 47.

As to the first issue, Defendant argues that Plaintiff cannot get damages under Civil Code section 3345 for an unfair competition claim under Business and Professions Code section 17200. Civil Code section 3345 allows for the trebling of a fine, or a civil penalty or other penalty in actions